

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 21-04

Greatway Logistics Group, LLC
Complainant

v.

Ocean Network Express, Pte., Ltd.,
Respondent.

JOINT STATUS REPORT

Complainant Greatway Logistics Group, LLC (“Greatway”), Intervenor Bureau of Enforcement (“BOE”) and Respondent Ocean Network Express Pte. Ltd. (“ONE” and collectively with Greatway and BOE, “the Parties”) submit this Joint Status Report and state as follows:

I.

Counsel for the Parties conferred on August 11, 2021 to discuss matters pertaining to discovery as well as the proceeding in general, and continued such discussion via e-mail on August 12-16, 2021.

BOE noted that under 46 C.F.R 502.68(d)(1): “Absent good cause shown, an intervenor desiring to utilize the discovery procedures provided in subpart L must commence doing so no more than 15 days after its motion for leave to intervene has been granted.” As the ALJ issued her order on August 4, 2021 granting BOE’s Motion to Intervene, the fifteenth day is August 19, 2021.

The Parties conferred and agreed on an extension of five (5) days so that all Parties will commence discovery on August 24, 2021. The Parties believe that the brief delay of discovery obligations will aid settlement discussions. The Parties continue to investigate all relevant issues and are interested in pursuing an agreed settlement to resolve this matter in the near term, if possible. As those discussions continue, the Parties propose the following schedule of deadlines:

- a. August 24, 2021 Discovery to begin. It is stipulated and agreed amongst the Parties that this commencement date will not preclude participation in reasonable discovery by Intervenor BOE;
- b. September 22, 2021 Expert witnesses to be designated by Greatway and BOE, if any;
- c. October 22, 2021 Expert witnesses to be designated by ONE, if any;
- d. October 29, 2021 Last date to serve written discovery requests;
- e. November 29, 2021 All discovery completed;
- f. April 22, 2022 Alternative dispute resolution, if any, to be completed;
- g. Briefing schedule on the merits to be discussed amongst the Parties as discovery on the merits progresses.

II.

As per the Presiding Officer's Initial Order and Federal Maritime Commission Rules of Practice and Procedure 64(a)(2), on July 13, 2021, ONE contacted the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS), regarding whether the matter may be resolved through mediation. BOE contacted CADRS on August 9, 2021. Greatway contacted CADRS on August 16, 2021. The Parties have not agreed to engage in mediation at this time. Though discussions may continue as to whether mediation may be accomplished privately, or through CADRS at some point in the future, if appropriate. The Parties are also receptive to direct settlement negotiations.

Finally, the Parties agree to service of all materials in this proceeding, including discovery requests and document production, via email to counsel of record.

DATED: August 16, 2021.

Respectfully submitted,

/s/ Ivan M. Rodriguez

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CERTIFICATE OF SERVICE

I certify that on the 16th day of August, 2021, a true and correct copy of the foregoing document was served on all counsel of record in accordance with 46 CFR Part 502.

/s/ Andrew R. Nash
Andrew R. Nash